

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 21, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aguilar v. Computer Sciences Corporation 2023-01310026	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$1,050,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed);

	\$315,000.00 for attorneys’ fees (not to exceed); \$30,000.00 for attorneys’ costs (not to exceed); \$6,990.00 for settlement administration fees (not to exceed); and \$50,000.00 total PAGA penalties (\$37,500.00 to LWDA). 1. The parties are ordered to revise the notice as follows: a. In section 2, the extra period at the end of the first paragraph should be removed; b. In section 5, subsection (2) should be removed; c. In section 5, the amount of attorneys’ fees in subsection (3)(a) should be revised as stated above; d. Section 8 should also address PAGA Pay Period challenges, as stated in the settlement agreement; e. In section 9, the released parties described in the first sentence of the first paragraph and the first sentence of the third paragraph are inconsistent with the settlement agreement and should be revised; f. In section 12, the second sentence of the second paragraph should be removed, as it is inconsistent with the settlement agreement; g. The method of submitting the exclusion form stated on the form (i.e., postmarked only) is inconsistent with the methods stated in the settlement agreement and should be revised; h. The methods of submitting the objection form stated on the form (i.e., mail and fax only) are inconsistent with the methods stated in settlement agreement and should be revised; and i. The method of submitting the workweek and pay period dispute form stated on the form (i.e., mail only) is inconsistent with the methods stated in the settlement agreement and should be revised. The form should also state the deadline for its submission. Plaintiff is ordered to file and serve <u>by May 28, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) a fully executed copy of the amendment to the settlement agreement; (3) the notice packet (in English and Spanish) (revised as stated above). The final approval hearing is scheduled for <u>January 7, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).
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		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Franco v. Padilla Construction Company 2023-01339685	<u>Plaintiff Gustavo Chavez Franco's Motion for Attorneys' Fees</u> Plaintiff Gustavo Chavez Franco moves for an award of attorneys' fees following the January 13, 2026 judgment (ROA 246) entered in this matter, in which the court awarded plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$109,940.00 in civil penalties. Plaintiff's counsel seeks an award of \$601,796.66 in attorneys' fees, based on an asserted lodestar of \$401,197.77, 640.75 claimed hours of attorney work, and a 1.50 positive multiplier. Brief (ROA 261) at 1:14-18. Plaintiff also seeks \$5,490.33 in costs, a \$5,000 "incentive award for serving as PAGA representative," and \$5,000 in administration fees "for expenses in facilitating payment to the aggrieved employees and the LWDA." For the following reasons, plaintiff's motion is granted in part and denied in part. Plaintiff alleged a single cause of action seeking civil penalties under PAGA based on a single legal claim that defendant Padilla Construction Company violated Labor Code section 226(a)(6) by failing to furnish employees with wage statements containing the inclusive dates of each pay period during the period May 19, 2022 to June 21, 2023. The court (Judge Lon Hurwitz) granted plaintiff's motion for summary adjudication on August 30, 2024, finding that Padilla's wage statements during the period May 19, 2022 to June 21, 2023 did not comply with section 226(a)(6). 8/30/24 Order (ROA 133). The parties thereafter proposed that they brief the issue of the amount of civil penalties to be imposed for Padilla's violation of section 226(a)(6), that the parties' previously filed Joint Stipulation of Undisputed Facts (filed 4/26/24, ROA 64) apply to this issue, and that following the filing of the parties' opening and reply briefs, the court hold oral argument on the penalties issue. ROA 150. On October 9, 2024 Judge Hurwitz entered an order approving the parties' proposal. ROA 156. Judge Hurwitz thereafter retired. This case was assigned to this department on March 5, 2025. ROA 182. At the July 10, 2025 initial case management conference, the court scheduled this matter for oral argument on December 11, 2025 on the penalties issue. The court heard argument on December 11, 2025, and issued its oral statement of decision that day. For the reasons set forth in its oral statement of decision, the court thereafter entered judgment in plaintiff's favor, in his representative capacity under PAGA on behalf of the LWDA and the PAGA aggrieved employees, and against defendant, in the amount of \$109,940.00, calculated based on 10,994 violative wage statements and \$10.00 per violative wage statement. The primary litigation activities in this case consisted of a demurrer, the parties' cross-motions for summary judgment, and the PAGA civil penalties bench trial. The parties also filed a handful of case management conference statements, joint status conference

statements and stipulations. As stated above, pursuant to the parties' agreement, the court decided the amount of PAGA penalties based on the parties' briefs and Joint Stipulation of Undisputed Facts, and following oral argument on the penalties issue. ROA 150.

Labor Code section 2699(k)(1) provides that "[a]ny employee who prevails in any action shall be entitled to an award of reasonable attorney's fees and costs." Here, plaintiff prevailed on his PAGA claim for an award of civil penalties against defendant.

The lodestar method for calculating attorneys' fees applies to any statutory attorneys' fees award, unless the statute authorizing the award provides for another method of calculation. *Galbiso v. Orosi Pub. Util. Dist.* (2008) 167 Cal.App.4th 1063, 1089; *see also K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1425. When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; *see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248. The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. *Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. *See Northwest Energetic Servs., LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 841, 879-82; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154. The court is not required to impose a multiplier; the decision is discretionary. *Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.

Plaintiff seeks reimbursement for work on this case by five attorneys, four law clerks, one paralegal and one legal administrator. Attorney Ackermann states that he reduced his firm's lodestar by 20% "in an act of billing discretion," but plaintiff does not identify the time entries for which plaintiff apparently does not seek compensation, and the time records attached as Exhibit 1 to the Ackermann Declaration assert claimed fees of \$350,617.22 and 600.14 hours of work, not \$280,493.77 in fees and 480.11 hours of work. *Compare* Ackermann Decl. (ROA 262) ¶ 8 *with id.* Ex. 1.

The court has read and considered plaintiff's arguments and declarations, plaintiff's counsel's time records and other evidence, and defendant's arguments, declaration and other evidence.

The court finds the following hourly rates reasonable under the circumstances of this case: Attorney Ackermann, \$700 per hour; Attorney Kreitenberg, \$500 per hour; Attorney Hernandez, \$450 per hour; Attorney Smolyar, \$350 per hour; Attorney Gao, \$350 per hour; Legal Administrator Blackwell, \$200 per hour; Paralegal Flores, \$200 per hour; and Law Clerks, \$125 per hour. Having reviewed and considered plaintiff's and defendant's submissions, and having presided in several PAGA cases including many applications for awards of attorneys' fees, the court finds these hourly rates reasonable for attorneys in the community who conduct litigation of the same type and under similar circumstances as in this case.

Based on the court's review of plaintiff's counsel's time records, the court finds several entries that reflect duplicative and/or excessive work, and does not award fees awarded for that work. For example, plaintiff's counsel's time records reflect duplicative and excessive hours spent by multiple attorneys writing and reviewing the demurrer papers, duplicative and excessive hours spent by multiple attorneys and law clerks writing and researching the summary judgment briefs, excessive hours spent by multiple attorneys preparing short case management conference statements and joint status conference statements, and excessive hours incurred "updat[ing] file."

Applying the above hourly rates and eliminating entries for duplicative and/or excessive work, the court finds the following rates and hours reasonable under the circumstances of this case:

Attorney Ackermann	\$700 * 115	= \$80,500
Attorney Kreitenberg	\$500 * 20	= \$10,000
Attorney Hernandez	\$450 * 115	= \$51,750
Attorney Smolyar	\$350 * 2	= \$700
Attorney Gao	\$350 * 115	= \$40,250
Legal Administrator Blackwell	\$200 * 15	= \$3,000
Paralegal Flores	\$200 * 15	= \$3,000
Law Clerks	\$125 * 50	= \$6,250
Total:	\$195,450	

Plaintiff's request for a 1.50 positive multiplier is denied. The court does not find that any factors warrant a multiplier under these circumstances of this case. The court declines to impose either a positive or a negative multiplier.

Plaintiff is awarded \$195,450 in attorneys' fees.

Plaintiff's request for \$5,490.33 in costs is denied, as the court already addressed plaintiff's costs in a previously-issued order. See 5/7/26 Order (ROA 318).

		Plaintiff's request for a \$5,000 "incentive award for serving as PAGA representative" is denied. Plaintiff cites no legal authority authorizing an incentive award to a plaintiff following entry of judgment after trial in a PAGA case, and, in any event, the court does not find an incentive award reasonable under the circumstances of this case. Plaintiff's request for \$5,000 in administration fees "for expenses in facilitating payment to the aggrieved employees and the LWDA" is denied. Plaintiff cites no legal authority holding that a court must appoint an administrator following entry of judgment after trial in a PAGA case and/or should order a defendant to pay the costs of such an administrator. Clerk to give notice.
3	Kalo, et al. v. 1-800-BATTERY, Inc., et al. 2015-00811823	<u>Defendant Richard Keller's Motion for Summary Judgment or, in the alternative, Summary Adjudication</u> Defendant Richard Keller moves for summary judgment or, in the alternative, summary adjudication against plaintiffs Marc Youssef Lazo, Jacques Hattouni and H&L Holdings, LLC's complaint filed May 23, 2018. For the following reasons, Keller's motion is denied. A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-51. If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. <i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); <i>Aguilar</i>, 25 Cal.4th at 850-51. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends the cause of action has no merit, there is no affirmative defense to the cause of action, there is no merit to an affirmative defense as to any cause of action, there is no merit to a claim for damages, as specified in Civil Code section 3294, or that one or more defendants either owed or did not owe a duty to the plaintiff. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. <i>Id.</i> A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. <i>Choochagi v. Barracuda Networks, Inc.</i> (2020) 60 Cal.App.5th 444, 453.

"[I]t is well established that the operative pleading frames the issues for purposes of summary judgment" *Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 279. It is also ""well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading."" *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130. "Thus, an amended complaint supersedes all prior complaints. [Citations.] The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment." *Id.* at 1130-31. "[O]nce an amended complaint is filed, it is error to grant summary adjudication on a cause of action contained in a previous complaint." *Id.* at 1131.

As stated above, Keller moves for summary judgment or, in the alternative, summary adjudication against plaintiffs' complaint filed May 23, 2018. Brief (ROA 2971) at 1:24-28; Separate Statement (ROA 2960) at 3:2-5. That complaint contains 119 paragraphs, and alleges 13 causes of action, 10 of them against Keller. ROA 827, 1610. (For unknown reasons, Keller states in his motion that plaintiffs also allege the first cause of action (reformation of written contract) in the May 23, 2018 complaint against him. Brief (ROA 2971) at 1:28-2:1. Plaintiffs allege the first cause of action in the May 23, 2018 complaint against L'Oreal USA S/D, Inc., NYX Profession Makeup, K&N Engineering, Inc. and CustomFAB USA.)

Plaintiffs amended their complaint on February 7, 2019 (ROA 828, 1900), January 24, 2020 (ROA 870) and December 4, 2020 (ROA 2558). Plaintiffs' operative complaint is the third amended complaint filed December 4, 2020. Plaintiffs' third amended complaint contains 172 paragraphs, and alleges 18 causes of action, 15 of them against Keller. ROA 2558. Compared the May 23, 2018 complaint, the third amended complaint also contains several additional paragraphs of allegations of "background facts." *Id.*

In short, Keller's motion is not directed at plaintiffs' operative pleading. The motion accordingly must be denied. In addition, despite seeking summary judgment, Keller does not address all of the causes of action alleged against him in the third amended complaint. Furthermore, in addition to several additional paragraphs of allegations of "background facts" in the third amended complaint—all of which plaintiffs incorporate into each cause of action—at least some of the causes of action in the third amended complaint that have the same title as causes of action in the May 23, 2018 complaint on which Keller seeks summary adjudication contain additional and/or different allegations than the versions of those causes of action alleged in the May 23, 2018 complaint.

Defendant's Request for Judicial Notice (ROA 2966) is denied as the documents were not material to the disposition of the motion.

Plaintiffs' Request for Judicial Notice (ROA 2990) is denied as the documents were not material to the disposition of the motion. In

		addition, it is not necessary to seek judicial notice of documents in the court file for this case. Plaintiffs' Evidentiary Objections (ROA 2994) were not material to the disposition of the motion. Plaintiffs Marc Youssef Lazo, Jacques Hattouni and H&L Holdings, LLC to give notice.
4	Goodman, et al. v. Optima Tax Relief LLC 2025-01503347	<u>Defendant Optima Tax Relief LLC's Demurrer to First Amended Complaint and Motion to Strike Portions of First Amended Complaint</u> Defendant Optima Tax Relief LLC demurs to the class action allegations in plaintiffs' first amended complaint and moves to strike the same portions of the first amended complaint. Defendant argues the class definition in paragraph 88 of the first amended complaint defines an impermissible "fail-safe" class that is not ascertainable. In their opposition, plaintiffs seek leave to file a second amended complaint to revise the class definition in paragraph 88. Plaintiffs' request for leave to file a second amended complaint to revise the class definition in paragraph 88 is granted, defendant's demurrer based on paragraph 88 is overruled as moot, and defendant's motion to strike based on paragraph 88 is denied as moot. If defendant contends plaintiff's revision of paragraph 88 is inadequate, case law states the "preferable practice" is to allow leave to amend and the parties then may test the legal sufficiency of the pleading through demurrer or other appropriate motion. See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 ("the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"); <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 ("the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings"). Defendant's other arguments in its demurrer—i.e., that plaintiffs cannot establish predominance of common questions and cannot establish typicality—are not suitable for resolution on demurrer here, as the court cannot conclude as a matter of law on this record that, assuming the truth of the factual allegations in the first amended complaint, there is no reasonable possibility that the requirements for class certification will be satisfied. Defendant's demurrer based on predominance and typicality is overruled. Defendant's Reply Request for Judicial Notice (ROA 91) is denied as the documents are not material to the disposition of the motions. Plaintiffs are ordered to give notice and to file and serve by May 28, 2026 a second amended complaint consistent with this ruling. <u>Status Conference in Case No. 2025-01503347</u> The court has reviewed the parties' joint status conference statement filed May 14, 2026 (ROA 85), and based thereon

		continues the May 21, 2026 status conference to <u>September 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
5	Kirshner v. Optima Tax Relief, LLC 2025-01523978	<u>Status Conference in Case No. 2025-01523978</u> The court has reviewed the parties' joint status conference statement filed May 15, 2026 (ROA 39), and based thereon continues the May 21, 2026 status conference to <u>September 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
6	Greenough v. SoCal Investment Group, Inc. 2025-01488601	<u>Defendant SoCal Investment Group, Inc.'s Motion to Defer Class and PAGA Discovery</u> Defendant SoCal Investment Group, Inc. moves pursuant to Civil Procedure Code section 2019.020(b) for an order "deferring discovery on the merits of plaintiff's . . . class claims and . . . PAGA claim until after a class certification motion is heard and decided." Notice of Motion (ROA 58) at 2:6-8. For the following reasons, defendant's motion is denied. Civil Procedure Code section 2019.020 states: (a) Except as otherwise provided by a rule of the Judicial Council, a local court rule, or a local uniform written policy, the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party. (b) Notwithstanding subdivision (a), on motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice. Civ. Proc. Code § 2019.020. "California law has long made clear that to require a party to supply proof of any claims or defenses as a condition of discovery in support of those claims or defenses is to place the cart before the horse." <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 551. Defendant argues discovery should be deferred until after class certification because plaintiff allegedly cannot satisfy the typicality requirement for class certification and allegedly lacks PAGA standing because "plaintiff personally has not suffered any injury." Brief (ROA 52) at 1:9-13. Defendant's contention that "plaintiff kept her own time records, was herself responsible for making sure she took all required rest periods and meal periods, and

represented in writing through her weekly time sheets that she had taken all required meal breaks,” and that therefore plaintiff has no viable rest and meal break claims “and therefor has no valid claims” against defendant ignores that plaintiff alleges several claims in addition to rest and meal break claims. ROA 2. Furthermore, defendant ignores California Supreme Court authority holding that an alleged lack of standing does not constitute good cause to defer discovery. See *Williams*, 3 Cal.5th at 558-59 (“[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing.”). The appellate authorities defendant cites predate *Williams* and, in any event, neither *Stephen v. Enterprise Rent-A-Car* (1991) 235 Cal.App.3d 806, nor *Fight for the Rams v. Superior Court* (1996) 41 Cal.App.4th 953, involves discovery in a class and PAGA action.

Plaintiff to give notice.

Plaintiff Jazmine Greenough’s Motion to Compel Further Responses to Special Interrogatories

Plaintiff Jazmine Greenough moves to compel defendant SoCal Investment Group, Inc. to provide further responses to Special Interrogatories (Set Two) Nos. 7, 12, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58 and 59. For the following reasons, plaintiff’s motion is granted in part and denied in part.

A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under Civil Procedure Code section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. Civ. Proc. Code § 2030.300(a).

On September 10, 2025 plaintiff served Special Interrogatories (Set Two) on defendant. Barvie Decl. (ROA 35) ¶ 5; Goonan Decl. (ROA 68) Ex. 6. On October 17, 2025 defendant served responses to the Special Interrogatories (Set Two). Goonan Decl. (ROA 68) ¶ 12 & Ex. 8. The parties subsequently engaged in meet and confer efforts regarding defendant’s objections to the special interrogatories at issue via written correspondence. Barvie Decl. (ROA 35) ¶¶ 6-8 & Exs. C, D, E & F. On December 1, 2025 plaintiff filed the instant motion to compel. ROA 35.

The interrogatories in dispute are addressed in turn below:

SPECIAL INTERROGATORY NO. 7:

Please state which Industrial Welfare Commission Wage Order, if any, YOU contend applies to each job position identified in Special Interrogatory No. 4.

SPECIAL INTERROGATORY NO. 12:

Please IDENTIFY all supervisor(s) who supervised the CLASS MEMBERS during the CLASS PERIOD.

RULING (Nos. 7 and 12): Granted. Defendant does not address the validity of its boilerplate objections to these interrogatories in the opposition (or elsewhere). As stated in the court's concurrent ruling denying defendant's motion to defer discovery, defendant's contention that plaintiff is not an adequate class representative and does not have PAGA standing does not constitute good cause to resist discovery. Defendant's arguments that *Williams* "does not address the situation present here," and "does not support the conclusion that Plaintiff is entitled to merits discovery on the purported class claims and PAGA claim before class certification notwithstanding the serious questions whether Plaintiff is an adequate class representative and has PAGA standing as an 'aggrieved employee,'" are simply incorrect. *Williams* states: "[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 558-59.

SPECIAL INTERROGATORY NO. 14:

For each PAY CODE listed in response to Special Interrogatory No. 5 (sic), please provide an explanation regarding what each PAY CODE means (if you refer to documents in response to this special interrogatory, please identify the specific Bates numbers for the responsive documents).

RULING (No. 14): Granted. Defendant's response does not comply with Civil Procedure Code section 2030.220(a), which states that an answer to an interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." Civ. Proc. Code § 2030.220(a). Defendant is ordered to provide a further Code-compliant response.

SPECIAL INTERROGATORY NO. 15:

Please DESCRIBE how YOU RECORDED the time CLASS MEMBERS started their shifts during the CLASS PERIOD. (For purposes of this request, "RECORDED" means the manner in which YOU documented, through written, recorded or other means the applicable start time of the period identified.)

SPECIAL INTERROGATORY NO. 16:

Please DESCRIBE how YOU RECORDED the time CLASS MEMBERS ended their shifts during the CLASS PERIOD. (For purposes of this request, "RECORDED" means the manner in which YOU documented, through written, recorded or other means the applicable end time of the period identified.)

SPECIAL INTERROGATORY NO. 17:

		Please DESCRIBE how YOU recorded start and end times for CLASS MEMBERS' meal periods during the CLASS PERIOD. RULING (Nos. 15, 16, 17): Denied. Defendant provided a Code-compliant response. SPECIAL INTERROGATORY NO. 18: Please DESCRIBE YOUR meal period policies, practices, and procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 23: Please DESCRIBE YOUR rest period policies, practices, and procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 25: Please DESCRIBE each of YOUR expense reimbursement policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 27: Please DESCRIBE each of YOUR compensation policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. RULING (Nos. 18, 23, 25, 27): Granted. Defendant's response does not comply with Civil Procedure Code section 2030.220(a), which states that an answer to an interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." Civ. Proc. Code § 2030.220(a). Defendant is ordered to provide a further Code-compliant response. SPECIAL INTERROGATORY NO. 19: Please IDENTIFY each DOCUMENT evidencing CLASS MEMBERS' recorded meal periods during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 20: Please state the total number of MEAL PERIOD PREMIUMS YOU paid to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 21: Please IDENTIFY all meal period waivers applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 22: Please IDENTIFY all on-duty meal period agreements applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 24:
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		Please state the total number of REST PERIOD PREMIUMS YOU paid to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 26: Please IDENTIFY each DOCUMENT DESCRIBING YOUR expense reimbursement policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 28: Please IDENTIFY each DOCUMENT DESCRIBING YOUR compensation policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 29: Please DESCRIBE each of YOUR COVID-19 policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 30: Please IDENTIFY each DOCUMENT DESCRIBING YOUR COVID-19 policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 32: Please IDENTIFY each DOCUMENT DESCRIBING YOUR SICK PAY policies, practices, and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 33: Please DESCRIBE each of YOUR reporting time policies, practices, and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 34: Please IDENTIFY each DOCUMENT DESCRIBING YOUR reporting time policies, practices, and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 36: Please IDENTIFY each DOCUMENT DESCRIBING YOUR rounding policies, practices and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 37: Please DESCRIBE each of YOUR timekeeping policies, practices and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 38:
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		Please IDENTIFY each DOCUMENT DESCRIBING YOUR timekeeping policies, practices and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 41: Please IDENTIFY each DOCUMENT DESCRIBING YOUR overtime policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 42: Please DESCRIBE each of YOUR scheduling policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 43: Please IDENTIFY each DOCUMENT DESCRIBING YOUR scheduling policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 50: Please IDENTIFY each DOCUMENT DESCRIBING YOUR policies for calculating the regular rate of pay for purposes of calculating the overtime rate to the CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 52: Please IDENTIFY each DOCUMENT DESCRIBING YOUR policies for calculating the regular rate of pay for purposes of calculating the meal premiums paid to the CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 54: Please IDENTIFY each DOCUMENT DESCRIBING YOUR policies for calculating the regular rate of pay for purposes of calculating sick pay paid to the CLASS MEMBERS during the CLASS PERIOD. RULING (Nos. 19, 20, 21, 22, 24, 26, 28, 29, 30, 32, 33, 34, 36, 37, 38, 41, 42, 43, 50, 52, 54): Granted. Defendant does not address the validity of its boilerplate objections to these interrogatories in the opposition (or elsewhere). As stated in the court's concurrent ruling denying defendant's motion to defer discovery, defendant's contention that plaintiff is not an adequate class representative and does not have PAGA standing does not constitute good cause to resist discovery. Defendant's argument that <i>Williams</i> "does not address the situation present here," and "does not support the conclusion that Plaintiff is entitled to merits discovery on the purported class claims and PAGA claim before class certification notwithstanding the serious questions whether Plaintiff is an adequate class representative and has PAGA standing as an 'aggrieved employee,'" are simply incorrect. <i>Williams</i> states: "[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff
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		proves he or she has standing.” <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 558-59. SPECIAL INTERROGATORY NO. 31: Please DESCRIBE each of YOUR SICK PAY policies, practices, and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 35: Please DESCRIBE each of YOUR rounding policies, practices and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. RULING (Nos. 31, 35): Denied. Defendant provided a Code-compliant response. SPECIAL INTERROGATORY NO. 39: Please IDENTIFY each timekeeping system used to record time worked by CLASS MEMBERS for YOU during the CLASS PERIOD. (For purposes of this interrogatory, “IDENTIFY” shall mean to state the name of the timekeeping system and/or third-party provider of the timekeeping system, the version of the software, and the publisher of the software, and the dates it was used by YOU.) SPECIAL INTERROGATORY NO. 40: Please DESCRIBE each of YOUR overtime policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. RULING (Nos. 39 and 40): Granted. Defendant’s response does not comply with Civil Procedure Code section 2030.220(a), which states that an answer to an interrogatory must be “as complete and straightforward as the information reasonably available to the responding party permits.” Civ. Proc. Code § 2030.220(a). Defendant is ordered to provide a further Code-compliant response. SPECIAL INTERROGATORY NO. 44: Please DESCRIBE each of YOUR INCENTIVE COMPENSATION policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 45: Please IDENTIFY each DOCUMENT DESCRIBING YOUR INCENTIVE COMPENSATION policies and/or procedures applicable to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 46: Please STATE each item of INCENTIVE COMPENSATION YOU paid CLASS MEMBERS during the CLASS PERIOD. (For purposes of this interrogatory, “STATE” shall mean describing or setting forth in detail how the INCENTIVE COMPENSATION was earned.) SPECIAL INTERROGATORY NO. 47:
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		Please IDENTIFY each DOCUMENT DESCRIBING each form of INCENTIVE COMPENSATION paid to CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 48: Please state how many times each type of INCENTIVE COMPENSATION was paid to CLASS MEMBERS during the CLASS PERIOD. RULING (Nos. 44, 45, 46, 47, 48): Denied. These interrogatories do not comply with Code of Civil Procedure section 2030.060(e) as the term "INCENTIVE COMPENSATION" is not defined. SPECIAL INTERROGATORY NO. 49: Please DESCRIBE each of YOUR policies for calculating the regular rate of pay for purposes of calculating the overtime rate to the CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 51: Please DESCRIBE each of YOUR policies for calculating the regular rate of pay for purposes of calculating the meal premiums paid to the CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 53: Please DESCRIBE each of YOUR policies for calculating the regular rate of pay for purposes of calculating sick pay paid to the CLASS MEMBERS during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 55: Please IDENTIFY the mobile phone applications YOU required any and all CLASS MEMBERS to download on their personal cell phones. SPECIAL INTERROGATORY NO. 56: Please state the total number of workweeks worked by PLAINTIFF during the CLASS PERIOD (if you refer to documents in response to this special interrogatory, please identify the Bates numbers for the responsive documents). SPECIAL INTERROGATORY NO. 57: Please state the total number of workweeks worked by PLAINTIFF during the PAGA PERIOD (if you refer to documents in response to this special interrogatory, please identify the Bates numbers for the responsive documents). SPECIAL INTERROGATORY NO. 58: Please DESCRIBE each of YOUR expense reimbursement policies and procedures applicable to PLAINTIFF during the CLASS PERIOD. SPECIAL INTERROGATORY NO. 59: Please DESCRIBE each of YOUR mileage reimbursement policies and procedures applicable to PLAINTIFF during the CLASS PERIOD.
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RULING (Nos. 49, 51, 53, 55, 56, 57, 58, 59): Denied. Defendant has provided a Code-compliant response.

Plaintiff's and defendant's requests for sanctions are denied.

Defendant is ordered to serve by June 4, 2026 verified, Code-compliant further responses to Special Interrogatories (Set Two) Nos. 7, 12, 14, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 32, 33, 34, 36, 37, 38, 41, 42, 43, 50, 52 and 54.

Plaintiff to give notice.

Plaintiff Jazmine Greenough's Motion to Compel Further Responses to Requests for Production

Plaintiff Jazmine Greenough moves to compel defendant SoCal Investment Group, Inc. to provide further responses to Requests for Production (Set One) Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9 and 10. For the following reasons, plaintiff's motion is granted.

In the absence of contrary court order, a civil litigant's right to discovery is broad. *Williams v. Superior Court* (2017) 3 Cal.5th 531, 551. "For discovery purposes, information is relevant if it "might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement" [Citation.] Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence.'" *Garamendi v. Golden Eagle Ins. Co.* (2004) 116 Cal.App.4th 694, 712 n.8.

A motion to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought by the discovery request. Civ. Proc. Code § 2031.310(b)(1). In order to meet the burden of showing good cause, the moving party must show relevance to the subject matter and specific facts justifying discovery. *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117. If the moving party demonstrates good cause, the opposing party must justify any objections. *Kirkland v Superior Ct.* (2002) 95 Cal.App.4th 92, 98.

On September 10, 2025 plaintiff served Requests for Production (Set One) on defendant. Barvie Decl. (ROA 34) ¶ 5; Goonan Decl. (ROA 76) Ex. 7. On October 17, 2025 defendant served responses to Requests for Production (Set One). Goonan Decl. (ROA 76) Ex. 9. The parties subsequently engaged in meet and confer efforts regarding defendant's objections to the requests for production at issue via written correspondence. Barvie Decl. (ROA 34) ¶¶ 6-8 & Exs. C, D, E & F. On December 1, 2025 plaintiff filed the instant motion to compel. ROA 34.

The requests in dispute are addressed in turn below:

REQUEST FOR PRODUCTION NO. 1:

Please PRODUCE all payroll records for each CLASS MEMBER, including PLAINTIFF, during the CLASS PERIOD in native electronic format.

REQUEST FOR PRODUCTION NO. 2:

Please PRODUCE all wage statements issued to each CLASS MEMBER, including PLAINTIFF, during the CLASS PERIOD.

REQUEST FOR PRODUCTION NO. 3:

Please PRODUCE all time records reflecting hours worked by each CLASS MEMBER, including PLAINTIFF, during the CLASS PERIOD in native electronic format.

RULING (Nos. 1, 2, 3): Granted. Defendant does not address the validity of its boilerplate objections to these document requests in the opposition (or elsewhere). As stated in the court's concurrent ruling denying defendant's motion to defer discovery, defendant's contention that plaintiff is not an adequate class representative and does not have PAGA standing does not constitute good cause to resist discovery. Defendant's arguments that *Williams* "does not address the situation present here," and "does not support the conclusion that Plaintiff is entitled to merits discovery on the purported class claims and PAGA claim before class certification notwithstanding the serious questions whether Plaintiff is an adequate class representative and has PAGA standing as an 'aggrieved employee,'" are simply incorrect. *Williams* states: "[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 558-59. There is no basis for defendant to selectively produce records pertaining only to plaintiff.

REQUEST FOR PRODUCTION NO. 4:

Please PRODUCE all DOCUMENTS describing the job duties and/or responsibilities for PLAINTIFF during the CLASS PERIOD.

REQUEST FOR PRODUCTION NO. 5:

Please PRODUCE all DOCUMENTS evidencing YOUR timekeeping policies, practices and/or procedures applicable to PLAINTIFF during the CLASS PERIOD.

REQUEST FOR PRODUCTION NO. 6:

Please PRODUCE all DOCUMENTS evidencing YOUR rest period policies and rest period premiums, practices and/or procedures applicable to PLAINTIFF during the CLASS PERIOD.

REQUEST FOR PRODUCTION NO. 7:

Please PRODUCE all DOCUMENTS evidencing YOUR meal period and meal period premium policies, practices and/or procedures applicable to PLAINTIFF during the CLASS PERIOD.

REQUEST FOR PRODUCTION NO. 8:

Please PRODUCE all DOCUMENTS evidencing YOUR expenses reimbursement policies, practices and/or procedures applicable to PLAINTIFF during the CLASS PERIOD, including but not limited to

		any policy or procedure regarding reimbursement for personal cell phone usage and mileage. REQUEST FOR PRODUCTION NO. 9: Please PRODUCE all employee handbooks applicable to PLAINTIFF during the CLASS PERIOD, including but not limited to any revisions, modifications, changes, edits and/or updates. RULING (Nos. 4, 5, 6, 7, 8, 9): Granted. Plaintiff contends that despite defendant's response that it will produce all responsive documents, no documents have been produced to date. Defendant does not dispute or otherwise address plaintiff's contention that no responsive documents have been produced. Defendant is ordered to produce the responsive documents. REQUEST FOR PRODUCTION NO. 10: Please PRODUCE all DOCUMENTS identified in YOUR response to PLAINTIFF'S Second Set of Special Interrogatories, served herewith. RULING (No. 10): Granted. Defendant's response that it "did not identify any documents in its responses to the Second Set of Interrogatories" is not correct. See Defendant's Responses to Special Interrogatories (Set Two) Nos. 15, 16, 17 & 39. Defendant is ordered to serve verified, Code-compliant further responses to Requests for Production (Set One) Nos. 1, 2, 3 and 10 and to produce all nonprivileged responsive documents by <u>June 4, 2026</u>. Defendant is also ordered to produce all nonprivileged documents responsive to Nos. 4, 5, 6, 7, 8 and 9 by <u>June 4, 2026</u>. If defendant withholds any responsive documents based on any privilege, defendant shall also serve by June 4, 2026 a privilege log identifying all documents it has withheld from production on the basis of a privilege(s). The log shall identify the privilege(s) and set forth sufficient information for plaintiff and the court, if necessary, to evaluate the privilege claim(s). Plaintiff's and defendant's requests for sanctions are denied. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed January 15, 2026 (ROA 62). The May 21, 2026 status conference is continued <u>September 3, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
7	Robles v. Avery Products Corporation 2024-01390483	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for

		approval of an \$280,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; \$84,000.00 for attorneys' fees (see No. 1 below); \$21,340.52 for attorneys' costs (\$567.65 was deducted; see No. 2 below); \$5,000.00 for settlement administration fees; and \$169,659.48 total PAGA penalties (\$127,244.61 to LWDA). 1. The court has reviewed paragraph 9 of the Supplemental Rose Declaration (ROA 91) and does not find the circumstances described therein unique. See ROA 82 (No. 7). The court finds attorneys' fees of 30% of the gross settlement amount (\$84,000) reasonable for this case. 2. Plaintiff's counsel previously sought costs of \$21,555.10. See ROA 82 (No. 9). In the supplemental filing, plaintiff has removed mailing charges and the "Wizzy Marketing Cost." Plaintiff has also added several new cost items, increased the charge for one cost item without explanation, and included two "future cost" charges. The court will not award these additional costs, which total \$567.65. Plaintiff is ordered to submit <u>by May 28, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment thereto; and notice letter (including the above amounts)). The amendment to the settlement agreement must be signed by the parties. In addition, only <u>one</u> copy of the notice letter should be attached to the proposed order and judgment. Duplicate and/or superseded copies of the notice letter should not be attached to the proposed order and judgment as exhibits. The final accounting hearing is scheduled for <u>February 25, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Sanchez Rangel v. Priority Workforce, Inc., et al. 2025-01524038	<u>Defendant Priority Workforce, Inc.'s Motion to Compel Arbitration</u> <u>Defendant Maruchan, Inc.'s Joinder</u> Defendant Priority Workforce, Inc. (Priority) moves for an order compelling plaintiff Alberto Sanchez Rangel to arbitrate his individual claims and dismissing his class allegations. Defendant Maruchan, Inc. joins Priority's motion. (Priority and Maruchan are

together, “Defendants.”) For the following reasons, Priority’s motion to compel arbitration is granted, and Maruchan’s joinder is granted.

The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id.*

Existence of an arbitration agreement

A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1056. “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’ (*Espejo, supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].’ (*Condee, supra*, at pp. 218–219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo, supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.)” *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (emphasis in original).

When an opposing party disputes that he or she signed an arbitration agreement electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; see also *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; *Espejo, supra*, 246 Cal.App.4th at 1060 (“[W]e conclude that defendants here met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing Espejo’s electronic signature. Once Espejo challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic.”).

The burden of authenticating an electronic signature is not great. *Fabian*, 42 Cal.App.5th at 1067.

Priority submitted with its moving papers the Declaration of Crystal Alvarez, who states she is Priority's Employee Development Manager. ROA 45. Alvarez states that Priority maintains personnel files that contain employment documents for each employee; Alvarez states that the documents are completed electronically and are kept in an electronic database organized by employee identification number. Alvarez Decl. (ROA 45) ¶¶ 1, 5. Alvarez states that the employment documents include an arbitration agreement, and she states that a copy of an arbitration agreement bearing plaintiff's electronic signature is attached to her declaration as Exhibit A. *Id.* ¶¶ 6-7. Alvarez states that plaintiff created his own credentials (a username and password) to access the onboarding documents, including the arbitration agreement. *Id.* ¶ 8. Alvarez states that only plaintiff knew his unique username and password, and only plaintiff could change his username and password. *Id.* Alvarez states that once plaintiff logged in using his username and password, he electronically signed the onboarding documents, including the arbitration agreement. *Id.* Alvarez states plaintiff electronically signed the arbitration agreement on October 11, 2023. *Id.* ¶ 7.

Exhibit A to the Alvarez Declaration is a Spanish-language document entitled "Acuerdo de Arbitraje del Solicitante" bearing the typewritten name in the signature block "Alberto Alberto sanchez rangel" [*sic*]. *Id.* Ex. A. The following words are printed in the bottom left corner of the first page of the document:

Digitally signed by priorityworkforce

Date: 2023.10.11 18:04:22 +00:00

Signers:

Alberto Alberto sanchez rangel 2023.10.11 18:04:20
(UTC)

Location: pd0mdwk00000J

Id. Ex. A. (No party ascribes significance to the page numbers of the document.) Priority submitted a certified translation of Exhibit A with its moving papers. Sylvia Decl. (ROA 45) ¶ 2 & Ex. B.

In opposition, plaintiff submitted declarations from himself and from Jesus Eduardo Dejar Macias. ROA 55, 59, 63, 65. (On May 20, 2026 plaintiff filed a "Notice of Errata" (ROA 71) stating that plaintiff "inadvertently misspelled" Jesus Eduardo Dejar Macias's name, and that his name is Jesus Eduardo Bejar Macias. Plaintiff's alleged error does not affect the outcome of the motion, although the court notes that both plaintiff and Macias signed declarations identifying Macias as "Jesus Eduardo Dejar Macias." ROA 63, 65.) Plaintiff states he neither signed an arbitration agreement nor authorized anyone else to sign on his behalf. Sanchez Rangel Decl. (ROA 55) ¶ 3. He states he had never seen the agreement attached to the Alvarez Declaration before this lawsuit; he never created his own login credentials, username or password for the onboarding process; and he never logged into any onboarding

system to sign an arbitration agreement. *Id.* ¶¶ 4, 14, 15. Plaintiff also states that a Priority employee named Jesus Eduardo Dejar Macias accompanied him to Priority’s offices to apply for employment on or about October 11, 2023; that he completed the onboarding paperwork using Macias’s electronic device; that Macias “walked [him] through the process, showed [him] the documents on his device and told [him] how to input [his] personal information as needed.” *Id.* ¶¶ 8, 9, 10. Plaintiff states Macias told him where to put his signature. *Id.* ¶ 10. Plaintiff states he never saw the arbitration agreement while reviewing the onboarding documents. *Id.* ¶ 11.

Macias states that he accompanied plaintiff to Priority’s offices to apply for employment on or about October 11, 2023. Macias Decl. (ROA 59) ¶ 2. Macias states that “[o]n that date” he helped plaintiff complete the onboarding process using Macias’s device; that he “walked [plaintiff] through the process, showed him the documents and instructed him how to input his personal information as needed”; and that for each document that needed an electronic signature, Macias “asked [plaintiff], himself[,] to sign it.” *Id.* ¶ 3. Macias states that he had never seen the arbitration agreement attached as Exhibit A to the Alvarez Declaration before May 2026, and that he did not show that document to plaintiff as part of the onboarding documents. *Id.* ¶¶ 5-6. Macias states that he did not see plaintiff sign the arbitration agreement. *Id.* ¶ 8.

As plaintiff disputes he signed the arbitration agreement electronically, Priority has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz*, 232 Cal.App.4th at 846. On reply, Priority submitted a supplemental declaration from Alvarez. ROA 67. In her supplemental declaration, Alvarez states her job duties as Employee Development Manager include overseeing the maintenance and safekeeping of personnel files of current and former Priority employees, and that she is also familiar as part of her job duties with Priority’s electronic onboarding system for new hires. Supp. Alvarez Decl. (ROA 67) ¶ 2. Alvarez states that Priority uses HR Center, a “human capital management platform used for recruiting and staffing agencies.” *Id.* ¶ 3. Alvarez states that during the onboarding process, an employee has the option of completing the necessary documents remotely or at Priority’s offices, using Priority’s iPads. *Id.* Alvarez states that at the offices, there are QR Codes that direct the employee to a weblink with a registration form; and that there are two versions of the QR Codes, one that directs the employee to the English registration form and another that directs the employees to the Spanish registration form. *Id.* Alvarez states that if an employee is not at Priority’s offices, the employee can reach the weblink with the registration form by navigating to Priority’s website and clicking the “apply now” button. *Id.* Alvarez states that the employee may change the language of the registration form. *Id.*

Alvarez states that on the registration form, the employee must fill out his full name, phone number, social security number, zip code and other personally identifying information, and that the employee

also creates his own unique username and password that the employee may use to access his account. *Id.* ¶ 4. Alvarez states that each employee's account can only be accessed using his own unique username and password the employee created. *Id.* Alvarez states that an employee cannot access any of the employee's onboarding documents necessary to begin work without creating a unique username and password that is linked to the employee's registration form. *Id.*

Alvarez states that once an employee completes the registration form and logs in with the employee's linked username and password, the employee may review, complete, acknowledge and sign various employee forms and policies, including Form W-4, Form SSA-89, the Employee's Predesignation of Personal Physician, policy acknowledgement, and the arbitration agreement. *Id.* ¶ 5. Alvarez states that on the first document that appears, the employee can type in his name as the signature, and that once that is completed, the employee can click to sign after reviewing each of the onboarding documents. *Id.*

Alvarez states that the arbitration agreement is available in Spanish for the employee to review. *Id.* ¶ 6. Alvarez states that once the employee reviews the arbitration agreement, the employee may save his signature on the arbitration agreement by clicking his assent. *Id.* Alvarez states that the employee can then continue reviewing and completing the remaining onboarding documents. *Id.*

Alvarez states that an employee cannot submit the employee's onboarding documents package until the employee clicks to sign and complete all of the onboarding documents. *Id.* ¶ 7. Alvarez states that the onboarding documents cannot be submitted without clicking to confirm assent to the arbitration agreement and all of the other onboarding documents. *Id.*

Alvarez states that once an employee electronically saves his signature on the arbitration agreement and the other onboarding documents, and submits his entire onboarding file, Priority human resources employees such as Alvarez can access the entire file through the Beyond platform. *Id.* ¶ 8. Alvarez states that Priority employees can access the files through the Beyond platform by searching the employee's name, social security number or other contact information, which is the information the employee initially submitted to Priority on the registration form, as that information is tied to the unique username and password the employee used to fill out the onboarding documents. *Id.*

Alvarez states that plaintiff was required to follow the process described in her supplemental declaration to complete his onboarding documents electronically, including electronically signing the arbitration agreement. *Id.* ¶ 9. Alvarez states that plaintiff electronically signed the Spanish version of the arbitration agreement on October 11, 2023, as part of his onboarding process, and that the stamp in the bottom left corner of arbitration agreement states plaintiff's name and the date he clicked to sign

the arbitration agreement. *Id.* ¶¶ 9, 10. Alvarez states that plaintiff's arbitration agreement is stored on the Beyond platform. *Id.* ¶ 9. Alvarez states that Exhibit 1 to her supplemental declaration is the audit trail of the click to sign of the arbitration agreement and plaintiff's other onboarding documents. *Id.* ¶ 11 & Ex. 1. Alvarez states that the audit trail lists plaintiff's social security number and other personal information, which links the arbitration agreement to the registration form on which plaintiff provided his personal information. *Id.* ¶ 11. Alvarez states that the audit trail also shows plaintiff's unique username (albertorangel), and that only plaintiff knew his password, unless plaintiff chose to share his password with someone else. *Id.*

Alvarez states that for someone other than plaintiff to have completed the registration form and onboarding documents, including clicking to sign the arbitration agreement, that person would have had to have known plaintiff's full name, date of birth, social security number, and contact information to gain access. *Id.* ¶ 12. Alvarez further states that plaintiff "could not have been hired without filling out and assenting to all Onboarding Documents." *Id.* ¶ 13.

Alvarez also states that Priority's records do not show a current or former employee named Jesus Eduardo Dejar Macias. *Id.* ¶ 14. Alvarez states that she searched all variations and combinations of that name that she could think of, and did not identify any current or former Priority employee matching that name. *Id.*

Alvarez's supplemental declaration and its exhibit are sufficient to carry Priority's burden of authenticating plaintiff's electronic signature by a preponderance of the evidence. Accordingly, as plaintiff's only challenge to the existence of the arbitration agreement is his contention that he did not electronically sign the agreement, Priority carried its burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.

The Federal Arbitration Act applies

Defendants argue the Federal Arbitration Act (FAA) applies. The arbitration agreement states: "Both the Company and I agree that any claim, dispute, or controversy that I may have against the Company (or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee health and benefit plans) or that the Company may have against me, arising out of, related to, or having any relationship or connection to my search for employment, employment, or other association with the Company, shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act (9 U.S.C. §§ 1, et seq.) pursuant to the procedures of the California Arbitration Act. (Cal. Code Cvi. [sic] Proc. sec. 1280 et. seq., including section 1283.05 and all other mandatory and permissive rights of discovery under the Act.)" Sylvia Decl. (ROA 45) Ex. B.

"The [Federal Arbitration Act] applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the

agreement.” *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76; see also *Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 340 Cal.Rprt.3d 858, 862 (same); *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 (same); *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 (“the presence of interstate commerce is not the only manner under which the FAA may apply. . . . [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement”).

Plaintiff does not dispute the FAA applies. The court finds the FAA applies.

Unconscionability

Plaintiff argues the arbitration agreement is unconscionable. In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening” the FAA’ or California law.” *Id.* at 125; see *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; see also *OTO*, 8 Cal.5th at 129-30. Substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO*, 8 Cal.5th at 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the nondrafting party's reasonable expectations. *Id.* at 130.

“[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” *Armendariz*, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate the arbitration agreement is procedurally and

substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

The arbitration agreement is a contract of adhesion. The arbitration agreement is a preprinted form agreement provided by Priority to all employment applicants. Supp. Alvarez Decl. (ROA 67) ¶ 5. The agreement does not state it is voluntary, and Alvarez states an employee cannot submit the onboarding documents without “clicking to confirm assent to the arbitration agreement” and the other onboarding documents, and that plaintiff “could not have been hired without filling out and assenting to all Onboarding Documents.” *Id.* ¶¶ 7, 13. The adhesive nature of the agreement is evidence of some degree of procedural unconscionability. *Sanchez*, 224 Cal.App.4th at 403.

Plaintiff argues the agreement is also procedurally unconscionable because (i) plaintiff never created his own login credentials, username or password and never logged into any onboarding system to sign an arbitration agreement, and (ii) nobody explained the arbitration agreement to him. The Supplemental Alvarez Declaration and its attachment, discussed above, refute the former argument. As to the latter argument, the arbitration agreement states that an employee may ask a company representative any questions about the agreement before signing the agreement: **“IF YOU HAVE ANY QUESTIONS REGARDNG THIS AGREEMENT, PLEASE ASK A COMPANY REPRESENTATIVE BEFORE SIGNING.”** Sylvia Decl. Ex. B (bold and capitalization in original). Plaintiff’s claim that the phrase “read the previous agreement” above the signature line is unclear and purportedly refers to an agreement other than the arbitration agreement has no merit. Read in context, that phrase plainly refers to the arbitration agreement above the signature line.

Plaintiff argues the arbitration agreement is substantively unconscionable pursuant to *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. In *Cook*, the court held that “[a]n arbitration agreement of infinite duration [that] requires an employee to arbitrate all claims against the employer, its agents, affiliates, and employees irrespective of whether they arise from the employment relationship” is unconscionable. *Id.* at 316.

The arbitration agreement in *Cook* required arbitration of “all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.” *Id.* at 321. As the *Cook* court stated, “[t]he plain language of the agreement requires Cook to arbitrate claims that are unrelated to her employment with USC.” *Id.* The *Cook* agreement also “survived indefinitely” following Cook's termination of employment. *Id.* at 325; see *id.* (“The agreement expressly states that it ‘shall survive the termination of Employee's employment, and may only be revoked or modified in a written

document that expressly refers to the “Agreement to Arbitrate Claims” and is signed by the President of the University”). In addition, the *Cook* agreement lacked mutuality because it required Cook to arbitrate any and all claims she might have against her employer “or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise,” but it did not require the employer’s “related entities” to arbitrate their claims against Cook. *Id.* at 326.

Based on these provisions, the court affirmed the trial court’s order finding the arbitration agreement unconscionable. The court also affirmed the trial court’s finding that unconscionability permeated the arbitration agreement as a whole and its refusal to sever the unconscionable provisions.

The arbitration agreement here contains a provision similar to one found unconscionable in *Cook*. As in *Cook*, the agreement lacks mutuality. The agreement requires plaintiff to arbitrate “any claim, dispute, or controversy” that plaintiff may have against “the Company (or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee health and benefit plans)” arising out of, related to, or having any relationship or connection to plaintiff’s search for employment, employment, or other association with the Company, but the agreement does not require the Company’s owners, directors, officers, managers, employees, agents, and parties affiliated with its employee health and benefit plans to arbitrate any claims, disputes or controversies that they may have against plaintiff arising out of, related to, or having any relationship or connection to plaintiff’s search for employment, employment, or other association with the Company. (No party ascribes significance to the statement in the agreement that the parties “will utilize binding arbitration to resolve all disputes that may arise outside of the employment context.” Sylvia Decl. Ex. B (¶ 1).)

Defendants do not attempt to justify this one-sidedness. See *Armendariz*, 24 Cal.4th at 117–18 (“As has been recognized “unconscionability turns not only on a ‘one-sided’ result, but also on an absence of ‘justification’ for it.””). Defendants instead argue that, pursuant to *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, 247, the agreement is mutual.

Ayala-Ventura v. Superior Court (2026) 119 Cal.App.5th 241, does not assist Priority in light of the language of the agreement here. The *Ayala-Ventura* court found that the agreement before it was not substantively unconscionable under *Cook* for lack of mutuality because (i) the definition of “Company” expressly included the company’s related entities and bound those entities to arbitration, and (ii) the agreement expressly limited arbitration to claims against the company’s employees or agents “in their capacity as employees or agents.” *Id.* at 258. Regarding the latter point, the *Ayala-Ventura* court explained that any claims Ayala-Ventura “may have against employees or agents unrelated to their role are therefore not subject to the Agreement,” and that the agreement’s

purported failure to require the company's employees and agents to arbitrate their claims against Ayala-Ventura did not result in a lack of mutuality between the contracting parties, i.e., Ayala-Ventura and the company. *Id.* at 258-59.

In contrast to the agreement in *Ayala-Ventura*, the definition of "Company" here is limited to Priority. (Plaintiff appears to concede that the undefined term "Company" in the agreement refers to defendant Priority. Opp. (ROA 53) at 14:19-20.) In addition, the list of people and entities against whom plaintiff is obligated to arbitrate his employment-related claims without any corresponding requirement that they do the same is longer and more attenuated than the "employees or agents in their capacity as employees or agents" in *Ayala-Ventura*, including not just Priority's owners, directors, officers, managers and employees, but also Priority's agents and parties affiliated with Priority's employee health and benefit plans.

The court acknowledges a lack of clarity in the oft-evolving case law addressing the mutuality of claims subject to arbitration in the employment context. That said, the court finds the provision here closer to that found nonmutual, and thus substantively unconscionable, in *Cook* than the provision found mutual in *Ayala-Ventura*. As discussed below, however, the court will sever the provision and enforce the balance of the arbitration agreement.

Plaintiff also argues the arbitration agreement is also substantively unconscionable because it purportedly "contains internal tension and ambiguity regarding PAGA." Opp. (ROA 53) at 15:13. The arbitration agreement states that it does not apply to "claims brought under the Private Attorneys General Act of the Labor Code of 2004 (Cal. Labor Code §§ 2698, et seq.). Sylvia Decl. Ex. B (¶ 1.A.). The agreement therefore does not apply to plaintiff's individual and nonindividual PAGA claims. The agreement also states: "I understand that there is no right or authority for any dispute *covered by this Agreement* to be heard or arbitrated on a class action basis, on a collective action basis, on a private attorney general basis, or on bases involving claims or disputes brought in a representative capacity on behalf of the general public, on behalf of other employees of the Company (or any of them), or on behalf of other persons allegedly similarly situated." Sylvia Decl. Ex. B (¶ 1.D.) (*italics added*). Plaintiff appears to contend that this provision in paragraph 1.D. creates ambiguity regarding the PAGA exclusion in paragraph 1.A. The provision in paragraph 1.D., however, is expressly limited to disputes "covered by this Agreement." As stated in paragraph 1.A., PAGA claims are not covered by the agreement.

Severance

The arbitration agreement contains a severance clause. The "Indemnification" section states: "If any term, provision, or part of this Agreement is held invalid or unenforceable, it will be severed, and the remainder of this Agreement will be enforceable." Sylvia

Decl. Ex. B (¶ 4). (No party ascribes significance to the "Indemnification" heading.)

"If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. [Citation.] The 'strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement.' [Citation.] Though the 'statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement,' it 'also appears to contemplate the latter course only when an agreement is "permeated" by unconscionability.'" *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 513.

As discussed above, one aspect of the agreement is substantively unconscionable, i.e., the phrase obligating plaintiff to arbitrate his covered claims against Priority's owners, directors, officers, managers, employees, agents, and parties affiliated with Priority's employee health and benefit plans, without any corresponding obligation that those people and entities arbitrate any covered claims against plaintiff. The court does not find the agreement permeated with unconscionability and thus exercises its discretion to sever the following phrase from the agreement and to enforce the balance of the agreement: "or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee health and benefit plans."

The class allegations are dismissed without prejudice

Plaintiff does not dispute that the arbitration agreement contains a class action waiver. Sylvia Decl. (ROA 45) Ex. B (¶ 1.D.) ("I understand and agree that all claims covered by this Agreement that I may have against the Company must be brought in my individual capacity and not as a plaintiff or class member in any purported class action, collective action, or representative action proceeding. Similarly, any claims covered by this Agreement that the Company may have against me cannot be brought as a plaintiff or class member in any purported class action, collective action, or representative action proceeding").

As discussed above, the FAA applies. The class action waiver is therefore enforceable. *See, e.g., Viking River Cruises v. Moriana* (2022), 596 U.S. 639, 651 ("a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party *agreed* to do so") (italics in original); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); *Evenskaas v. California Transit, Inc.* (2022) 81 Cal.App.5th 285, 297-98. The class allegations are dismissed without prejudice.

Maruchan's joinder is granted

		As noted above, Maruchan joins Priority’s motion. Priority argues in its opening brief that Maruchan, a nonsignatory, may enforce the arbitration agreement because (i) the agreement allegedly applies to “parties affiliated” with Priority and (ii) pursuant to the equitable estoppel doctrine. Priority Brief (ROA 45) at 15:10-16:4. Maruchan’s joinder states that it joins Priority’s arguments. ROA 49. Plaintiff filed an opposition to Maruchan’s joinder (ROA 61), but did not address Priority’s arguments regarding Maruchan’s ability to enforce the arbitration agreement in its opposition to Priority’s motion. Contrary to Priority’s claim, the arbitration agreement does not state that it applies to “parties affiliated” with Priority. The agreement states that it applies to “parties affiliated with [Priority’s] employee health and benefit plans.” Sylvia Decl. Ex. B (¶ 1.A.). Maruchan may, however, enforce the arbitration agreement as a nonsignatory pursuant to the equitable estoppel doctrine. As noted, plaintiff did not address in his opposition Priority’s argument that <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, 787-88, applies here. <i>See also Gonzalez v. Nowhere Beverly Hills LLC</i> (2024) 107 Cal.App.5th 111, 123-29. Plaintiff alleges Priority, a staffing company, employed him and that he worked at Maruchan’s Irvine location. First Amended Complaint (ROA 14) ¶ 3. Plaintiff alleges “all Defendants carried out a joint scheme, business plan or policy,” alleges all factual allegations against “Defendants” collectively, and alleges all 21 causes of action against “all Defendants.” First Amended Complaint (ROA 14). Plaintiff provides no argument that under these circumstances <i>Garcia</i> and <i>Gonzalez</i> do not apply here such that plaintiff need not arbitrate his covered claims against Maruchan. The superior court action, including plaintiff’s individual and nonindividual PAGA claims, is stayed pending completion of the arbitration of plaintiff’s individual claims. The June 11, 2026 status conference is vacated. An ADR Review hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint ADR Review hearing statement at least five court days before the hearing. Defendants to give notice.
9	Schimmelpfennig v. Philip Tupy, et al. 2024-01408612	<u>Plaintiff Paul Schimmelpfennig’s Motion for Leave to File First Amended Complaint to Substitute Successor in Interest</u> Liesa Schimmelpfennig (Leisa) moves for leave to file a first amended complaint to substitute Leisa as successor in interest for plaintiff and decedent Paul Schimmelpfennig (Paul). Although Leisa styles her motion as a motion for leave to amend, Leisa cites Civil Procedure Code sections 377.30 through 377.34 as support for the motion. The court thus construes the motion as a motion for an order substituting Leisa as successor in interest for Paul. No opposition has been filed. For the following reasons, Leisa’s motion is granted.

		Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following: (1) the decedent's name; (2) the date and place of the decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; or (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) "The affiant or declarant affirms or declares under penalty of perjury under the law of the State of California that the foregoing is true and correct." In addition, a certified copy of the decedent's death certificate shall be attached to the affidavit or declaration. Civ. Proc. Code § 377.32(c). Leisa filed a declaration (ROA 312) in support of her motion. The declaration includes all of the information required by section 377.32(a) and a copy of Paul's death certificate (ROA 312, Ex. A). Leisa is ordered to file and serve a clean (non-redlined) copy of the first amended complaint attached as Exhibit C to the Page Declaration (ROA 309) within 10 days of the date of this order. Plaintiff to give notice.
10 2:30 p.m.	Say v. QPS Production LLC, et al. 2024-01385096	Off calendar.